

Justification for a Sole Source Acquisition FAR Subpart 13.501

1. Identification of the agency and contracting activity.

- a. Federal agency and contracting activity.** Department of Health and Human Services, Assistant Secretary for Administration, Office of Acquisition Management Services
- b. Requiring activity.** Department of Health and Human Services, National Institutes of Health, National Cancer Institute, Center for Cancer Research, Laboratory of Cell Biology.

2. Nature and/or description of the action being approved

- a.** The Tissue Morphodynamics Section of NCI/CCR/LCB has a need for a service contract to maintain their Zeiss Lightsheet Z.1 Fluorescence Microscope that is used for super resolution 3D and 4D time lapse imaging of cancer cells extravasation, immune cell dynamics, and blood brain barrier integrity in live zebrafish and other thick tissue specimens to further their metastatic cancer research.

3. Description of the supplies or services required to meet the agency's needs (including the estimated value).

a. Project title.

Maintenance Service Support for a Carl Zeiss Lightsheet Z.1 Fluorescence Microscope in the Tissue Morphodynamics Section of NCI/CCR/LCB

b. Project description.

The Tissue Morphodynamics Section of NCI/CCR/LCB has a Zeiss Lightsheet Z.1 Fluorescence Microscope that needs to be covered by a service contract. Keeping this instrument on a service agreement is a necessity as any instrument downtime has the potential to affect the work of Tissue Morphodynamics Section of NCI/CCR/LCB as well as researchers from the other CCR Labs. The Tanner Lab (Tissue Morphodynamics Section) was among the first to show that cancer cell organotropism is conserved in zebrafish. This model allows cancer cell dynamics to be interrogated in single cell resolution in an intact living system by visualizing rare and consequential parts of the metastatic cascade that are necessary for metastatic disease. This technique and model allows the study of cellular behavior in real-time in an intact living organism allowing for discoveries that will inform patient therapies.

Maintaining the Lightsheet Z.1 Fluorescence Microscope is thus of utmost importance. Carl Zeiss Microscopy, LLC is the only vendor able to service this instrument. Zeiss is the designer and manufacturer of the Lightsheet Z.1

Fluorescence microscope and hold multiple patents on the instrument. They have factory trained and certified service engineers located in the NCR region and house the largest inventory of Zeiss spare parts in the world. Their technical support has proven to be readily available and timely for hardware and software support resulting in maximum user time on the system and minimal “down-time” for repairs of the microscope. This is a necessity as any instrument downtime has the potential to affect the cutting edge super resolution 3D and 4D time lapse imaging of cancer cells, immune cell dynamics, and blood brain barrier integrity in live zebrafish and other thick tissue specimens in the Tissue Morphodynamics Section of LCB. The microscope and it’s location (listed in the Statement of Work (SOW)) is listed below:

1. Lightsheet Z.1 Fluorescence Microscope SN 2583000305 (location A)

The Contractor shall provide all labor, materials and equipment to provide preventive maintenance for Government-owned equipment listed below. All maintenance services shall be performed in accordance with the manufacturer’s standard commercial maintenance practices.

c. Proposed contract/order type.

This is a severable, Firm-Fixed-Price Purchase Order

d. Total estimated dollar value and performance/delivery period.

[REDACTED]

The Period of Performance for the Base Period is 5/1/2026 – 4/30/2027. The Period of Performance for Option Period One is 5/1/2027 – 4/30/2028. The Period of Performance for Option Period Two is 5/1/2028 – 4/30/2029.

e. Name and address of the proposed contractor.

Carl Zeiss Microscopy, LLC
One North Broadway
White Plains, New York 10601-2310

[REDACTED]

4. Identification of the statutory authority permitting a sole source.

This sole source acquisition is being conducted using the procedures of FAR Part 12 and FAR Subpart 13.5 in accordance with 41.U.S.C 1901 for a commercial item not exceeding \$7.5 million. Acquisitions conducted under simplified acquisition procedures are exempt from the requirements in Part 6. In accordance with FAR 13.106-1(b) and FAR 13.501(a) contracting officers may conduct sole source acquisitions if the need to do so is justified in writing.

This sole source justification is prepared using the format at FAR 6.303-2, modified to reflect the procedures in FAR subpart 13.5 were used.

5. Proposed contractor's unique qualifications or nature of the acquisition requires use of the authority cited.

The Carl Zeiss Lightsheet Z.1 Fluorescence Microscope was designed by the firm Carl Zeiss Microscopy, LLC. It requires professional maintenance including scheduled service visits and periodic part replacement. Continuous service requires a renewable service contract. The internal components and mechanisms of this instrument is proprietary and Carl Zeiss Microscopy, LLC is the only known source capable of fulfilling the service contract on these instruments.

Zeiss service engineers have the highest qualification for repairing Zeiss confocal microscopes. They are factory trained and certified in Germany on the latest models of the instrument. No other firm is known to have the certifications that are required to work on the Carl Zeiss Lightsheet Z.1 Fluorescence Microscope.

Carl Zeiss Microscopy, LLC holds multiple patents on this instrument and it is the sole source for replacement parts. The parts of the confocal instrument require special handling and this handling needs approval of Carl Zeiss Microscopy, LLC to get the warranty replacements.

The NCI is constantly upgrading these microscope systems with newest versions of the proprietary software and hardware. These new pieces require fine-tuning, which is more cost effective if done as part of the service contract.

Carl Zeiss Microscopy, LLC gives priority scheduling for emergency service to instruments under a service maintenance agreement and can be onsite within 72 hours of the initial service request, as required by this requirement. With utilizing live animals for our experiments, the Tissue Morphodynamics Section of LCB cannot afford any instrument downtime.

A service agreement enables unlimited phone support for troubleshooting and onsite training of users by certified technical support engineers and application specialists. This access is instrumental to the Tissue Morphodynamics Section of LCB, who often needs to design and install macros for new experiments or to perform specific analyses or streamline data collection. This service can only be provided by Zeiss qualified application specialists.

It is critical to the smooth operation and research of the Tissue Morphodynamics Section of LCB that Carl Zeiss Lightsheet Z.1 Fluorescence Microscope continues to be calibrated accurately and maintained according to the manufacturer's specifications. Any deviation from the specifications could jeopardize the use of the system and affect the research output. Therefore, it is crucial that the system is properly maintained with OEM parts by factory-trained certified technicians.

6. Description of efforts made to ensure that offers are solicited from as many potential sources as is practicable, including whether a notice was or will be publicized as required by FAR subpart 5.2 and, if not, which exception under 5.202 applies.

A notice of intent to sole source shall be publicized via the GPE at <https://www.sam.gov>

7. Determination by the Contracting Officer that the anticipated cost/price to the Government will be fair and reasonable.

The HHS Office of Acquisition Management Service will consider the Independent Government Cost Estimate, previous purchase order prices, and published prices as determination factors for price reasonableness. Based on the aforementioned, there is no reason to believe that price will not be fair and reasonable to the Government. A final determination will be conducted prior to the award of the contract.

8. Description of the market research conducted (see FAR Part 10) and the results, or a statement of the reasons market research was not conducted.

The NCI Program Office contacted Microscope manufacturers, Nikon, Olympus and Leica-Microsystems, which produce similar systems, and was informed that they do not provide service for Carl Zeiss Lightsheet Z.1 Fluorescence microscopes. The Program Office reached out to Baltimore Precision Instruments, a comprehensive and renowned microscope service provider in the NCR. They do not provide any service contracts for Carl Zeiss Lightsheet Z.1 Fluorescence microscopes.

We also investigated equipment management companies such as Specialty Underwriters and the Remi Group. Equipment management companies do not offer a traditional maintenance agreement but rather provide service by utilizing an OEM vendor on a billable basis as a third party contractor. After technical evaluation, it was determined that such a service would meet the government's stated requirements in Section 5 of the SOW. Equipment management companies cannot meet the requirement for having a certified service engineer on site within 72-hours in emergencies. They cannot furnish the required replacement parts at no additional cost to the Government using unlimited new or remanufactured original equipment specification parts to restore the equipment to

normal and efficient operating condition. The microscope parts are proprietary and not sold to third parties. No vendor other than Carl Zeiss Microscopy LLC has access to the required parts and expertise to maintain and repair the Carl Zeiss Lightsheet Z.1 Fluorescence Microscope in the Tissue Morphodynamics Section of NCI/CCR/LCB.

Based on this market analysis, Carl Zeiss Microscopy, LLC is the only known vendor that can meet the needs of NCI for a service maintenance agreement at this time.

9. Any other facts supporting the justification.

It is essential that the microscope is covered by a Carl Zeiss Microscopy, LLC Maintenance Agreement because only such a service contract provides access to technical phone support by qualified service engineers. In addition to this, a maintenance agreement covers reinstallation of software if necessary.

9. Listing of sources, if any, that expressed, in writing, an interest in the acquisition.

A notice of intent to sole source shall be publicized via SAM.GOV. Vendors will be given an opportunity to provide capability statements. The information received will be considered for the purpose of determining whether or not to conduct a competitive procurement.

10. Statement of the actions, if any, the agency may take to remove or overcome any barriers to competition before any subsequent acquisition for the required supplies or services.

The NCI anticipates the needs to be met successfully in this contract. In the event that the NCI requires additional parts, services, software upgrades or attachments, the NCI Program Office and the HHS Contracting Officer will conduct market research to determine if there are others sources available that can provide the services required.

12. Requiring Activity certification.

This is to certify that the portions of this justification that have been developed by the undersigned program office personnel, including supporting information and/or data verifying the Government's minimum needs, schedule requirements and other rationale for other than full and open competition, are accurate and complete.

Official	Name & Title	Signature	Date
Requiring Activity POC			

POC Immediate Supervisor			
Head of the Sponsoring Program Office			

13. Contracting Officer certification and approval.

This is to certify that the justification for the proposed acquisition has been reviewed and that to the best of my knowledge and belief the information and/or data provided to support the rationale and recommendation for approval is accurate and complete.

Official	Name & Title	Signature	Date
Contracting Officer	Wendy Wallace		3/23/26

14. Competition Advocate approval.

Official	Name & Title	Signature	Date
OPDIV Competition Advocate			